NDIS Quality and Safeguards Commission

Our Ref: EC23-000XXX

Dream Big Employment Pty Ltd
93 663 473 694
Unit 2, 210 Jull St
Armadale, WA 6112

By email to: DB0004@dream-big.com.au; vitality.wa@yahoo.com

Dear Ms Virginie Fanny-Dulloo

Notice under section 56 of the *National Disability Insurance Scheme Act 2013*
Accompanying this letter is a notice of a requirement (notice) under section 56 of the *National Disability Insurance Scheme Act 2013* (Cth) (NDIS Act), dated 20 January 2023, directed to Dream Big Employment Pty Ltd.

You will see that it requires that the information be given and documents produced to the Commissioner by no later than 5:00 pm on Monday 6 February 2023.

Section 57 of the NDIS Act makes it an offence to refuse or fail, without reasonable excuse, to provide information or documents if required to do so by a notice under section 56. The offence is punishable on conviction by a fine of not more than $41,250 for a body corporate.

Further information and assistance
If you require further information in relation to this matter, please contact Assistant Director, Mr Matt Read on 0476 642 561 or by email at matt.read@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head, North Central West
NDIS Quality and Safeguards Commission

20 January 2023

NDIS Quality and Safeguards Commission

To: Dream Big Employment Pty Ltd
93 663 473 694
Unit 2, 210 Jull St
Armadale, WA 6112

NOTICE OF REQUIREMENT TO GIVE INFORMATION & PRODUCE DOCUMENTS
SECTION 56 OF THE *NATIONAL DISABILITY INSURANCE SCHEME ACT 2013* (NDIS Act)

Pursuant to section 55A(1) of the NDIS Act I, Philip Halton, delegate of the Commissioner of the NDIS Quality and Safeguards Commission (the Commission), require you to:

- give the information contained in Schedule 1 of this notice in writing; and
- produce the documents described in Schedule 2 of this notice

to the Commissioner by no later than **5:00pm** on **Monday 6 February 2023**.

Basis for this notice
I give this notice in accordance with section 56 of the NDIS Act. I require you to **g**ive information and produce documents that I reasonably believe you have, or have custody or control of, that may be relevant to one or more of the matters listed in section 55A(2) of the NDIS Act. In respect of this notice, the matters are:

- whether Ms Vida Reid (Ms Reid), a person subject of a banning order made under section 73ZN of the NDIS Act, is providing or has provided supports or services in contravention of the order (section 55A(2)(e));
- whether Mr Simon Reid (Mr Reid), a person subject of a banning order made under section 73ZN of the NDIS Act, is providing or has provided supports or services in contravention of the order (section 55A(2)(e));
- whether Dream Big Employment Pty Ltd (Dream Big), as an NDIS provider, is complying or has complied with the requirements of the NDIS Code of Conduct, particularly sections 6(a)[1] and 6(d)[2], in the provision of supports and services to Ms Annette Ogden (Ms Ogden) and other NDIS participants, as required by section 73V of the NDIS Act (section 55A(2)(d));
- whether Ms Tori Fitton (Ms Fitton), as a person employed by a NDIS provider (Dream Big), complied with the requirements of the NDIS Code of Conduct, particularly sections 6(a) and 6(d), in the provision of supports and services to Ms Ogden, as required by section 73V of the NDIS Act (section 55A(2)(d)); and
- the functions of the Commissioner with respect to monitoring, compliance and enforcement of Dream Big's, Ms Reid's, Mr Reid's and Ms Fitton's obligations under the NDIS Act (section 55A(2)(f)).

A copy of the relevant legislative provisions is contained in **Schedule 3** to this notice.

[1] National Disability Insurance Scheme (Code of Conduct) Rules 2018.

[2] Ibid.

How to give the information and produce the documents
To comply with this notice, the information listed in Schedule 1 must be provided in writing, and the documents in Schedule 2 may be provided in hard copy or electronically, and may be:

1. delivered to the NDIS Quality and Safeguards Commission's offices at Level 1, 200 St Georges Terrace, Perth WA 6000 attention Matt Read, Assistant Director between 8.30 am and 5.00 pm on any business day; or
2. sent by ordinary post addressed to the attention of Matt Read, Assistant Director, NDIS Quality and Safeguards Commission, Level 1, 200 St Georges Terrace, Perth WA 6000; or
3. sent by email to wacompliance@ndiscommission.gov.au attention of Matt Read, Assistant Director

to arrive by no later than the time stated above.

Non-compliance with this notice
Refusal or failure, without reasonable excuse, to comply with this notice is an offence under section 57(1) of the NDIS Act punishable on conviction by a penalty not exceeding $41,250 for a body corporate.

Further information
If you need assistance in understanding or complying with this notice, require more time or wish to discuss, please contact Matt Read, Assistant Director, NDIS Quality and Safeguards Commission, Perth on 0476 642 561 or by email matt.read@ndiscommission.gov.au.

Finally, you should keep a copy of all information you send to the Commission for your own records, as we may need to contact you again in relation to this matter.

Philip Halton
Branch Head, North Central West
NDIS Quality and Safeguards Commission

20 January 2023

Schedule 1

This is **Schedule 1** to the Notice dated <date>.

The information that you are required to give by **5:00 pm** on **Monday 6 February 2023** is as follows:

1. Names, position title and responsibilities of each person employed, or otherwise engaged, by Dream Big to provide NDIS supports or services;
2. Details of the involvement and role of Ms Veronica Reid in the establishment and ongoing operations of Dream Big;
3. Details of the involvement and role of Ms Reid and Mr Reid in the establishment and ongoing operations of Dream Big and the delivery of supports and services to Ms Ogden;
4. Details of the financial arrangements of Dream Big, including details of its bank accounts and signatories to those bank accounts;
5. Details of contracts or agreements entered into by Dream Big with other entities and/or individuals, including Ms Reid and Access Disability Services WA Pty Ltd;
6. Details of the arrangements for the delivery of supports and services at 3 MacArthur St, Cottesloe WA 6011 and any other property owned by Mr and/or Ms Reid;
7. Details of how Dream Big has built its NDIS participant client-base, including details of any information about NDIS participants sourced from or provided by Forward Focussed Group Pty Ltd and/or Hybrid Hive Pty Ltd and/or Ms Reid;
8. Details of how Dream Big came to commence delivering supports and services to Ms Ogden in or about December 2022, including details of the dates in which Dream Big commenced the delivery of supports and services and any service agreements executed and/or varied; and
9. Details concerning the cessation of supports and services by Dream Big to Ms Ogden in December 2022.

Schedule 2

This is **Schedule 2** to the Notice dated <date>.

These are the documents that you are required to produce, electronically or in hard copy, by 5:00 pm on Monday 6 February 2023:

1. Copies of any contracts or other agreements (for example, profit share agreement) proposed and/or executed between Dream Big and any individual or entity, concerning the delivery of NDIS supports and services;
2. Copies of all draft, varied and executed service agreements between NDIS participants and Dream Big;
3. Copies of all documents recording or relating to the delivery of NDIS supports or services by Dream Big to Ms Ogden;
4. Copies of all documents concerning claims for payment by Dream Big against the NDIS plan of Ms Ogden;
5. Copies of all personal information about NDIS participants sourced from or provided by Forward Focussed Group Pty Ltd and/or Hybrid Hive Pty Ltd and/or Ms Reid;
6. Copies of all correspondence between Dream Big or any of its representatives and Ms Ogden and/or Mr Ogden concerning the provision of NDIS supports or services, including claims for payment against Ms Ogden's NDIS plan; and
7. Copies of all correspondence between Dream Big or any of its representatives and Access Disability Services WA Pty Ltd and/or Mr Paul Ugwunali concerning the delivery of NDIS supports and services to Ms Ogden.

Schedule 1 Draft Response

1. Names, position title and responsibilities of each person employed, or otherwise engaged, by Dream Big to provide NDIS supports or services;

- Alex Bowers, Support Worker, gives support to our participants.
- Blake Sadler, Director of Operations, Support Coordinator for our participants.
- Ousman Kamara, Support Worker, gives support to our participants.
- Paula Stanford, Support Worker, gives support to our participants.
- Samza Serry, Support Worker, gives support to our participants.
- Tori Fitton, Director of Finance, oversees finance for the business, invoicing participants, payroll, in and out goings.
- Virginie Fanny-Dulloo, Director of Housing and Operations, housing enquiries, schedular for support workers, documents for participants that require support workers.

2. Details of the involvement and role of Ms Veronica Reid in the establishment and ongoing operations of Dream Big;

- Trustee of the company
- No other involvement

3. Details of the involvement and role of Ms Reid and Mr Reid in the establishment and ongoing operations of Dream Big and the delivery of supports and services to Ms Ogden;

- Mr Reid Submitted the ASIC form on our behalf as we did not know how to do this and were out of jobs and fearful of not being able to put food on the table. It was only a good deed nothing more to help the ex-employees.
- No involvement in the ongoings of the operations of Dream Big and the delivery of supports and services to Ms Ogden other than Ms Reid allowed Ms Ogden to rent the property in Cottesloe as per the request of her husband from our knowledge.

4. Details of the financial arrangements of Dream Big, including details of its bank accounts and signatories to those bank accounts;

- Dream Big bank with Commonwealth
- Account was set up by Virginie Fanny-Dulloo at the Armadale branch
- Virginie Fanny-Dulloo and Tori Fitton are the only Signatories/ authorizations to the account

5. Details of contracts or agreements entered into by Dream Big with other entities and/or individuals, including Ms Reid and Access Disability Services WA Pty Ltd;

- No contracts or agreements entered into by Dream Big with Access Disability Services WA Pty Ltd.
- Rental of properties if we needed for our participants.

READ: No? Okay. But you're on the social medias – the Facebooks and stuff? And - - -

FANNY-DULLOO: Yeah. I see what – I see if she, like – well, it's been a long time, you know. I haven't seen anything for a while but I don't "like" or comment or anything. Like, you know how you have – sometimes you have a lot of people on Facebook or – or – or - - -

READ: Yeah.

FANNY-DULLOO: Not Facebook. Like, social media.

READ: Yeah.

FANNY-DULLOO: You have a lot of people. Like, it doesn't mean that you need to – to text or to comment what they put on. It's, like, you see it and that's it.

READ: Yeah.

FANNY-DULLOO: You flip and keep going.

READ: Yeah. Have you – have you got any – well, Simon Reid? Have you got knowledge around Simon – of Simon Reid?

FANNY-DULLOO: Yep. So, Simon was the director of The Hive.

READ: Yep. Was he anything to do with FFG when you were an employee?

FANNY-DULLOO: No.

actually, you know, the people that we know who needed the care, you know, is not left without – without care.

READ: Okay. So, with Dream Big, when did they – when did they evolve? And, when were they created?

FANNY-DULLOO: So, Dream Big started on – like, on the 31st of October.

READ: And, who was this – whose decision was that?

FANNY-DULLOO: So, it was myself, Blake and – and Tori. We were like, "Okay. We need to do something, and we would like to do that." And, we did ask Simon – who back then was not banned – if he would be able to help us to set up, like, to set up the business or to set up on ASIC because we have no idea how – and we needed his expertise to help us – just to set it up on ASICs and all that, and give us, like, you know, not advice but to start up the company, like, another company, the ASIC part of it. That's where – that's the only part that Simon played and that even was before the banning order.

READ: Yep. So, who – so who had – so who had the conversations around starting up whether to be registered or unregistered?

FANNY-DULLOO: Well, we – all three of us, we were, like, at the table, and we were like, "Okay." So, registered from kind of, I guess, there's a lot to do. Not a lot to do but paper-wise and – and there was a lot to take on for the moment. We will be registered in the future, you know, like, when we start building because, you know, we just started.

READ: Yeah.

FANNY-DULLOO: We don't know how – how it's going to go. So – and then, that's how we're like, "Okay. We can maybe start it as an unregistered provider first until we start building from – little by little, get our registration on." Because I'm pretty sure you have to pay for that.

READ: Yep.

FANNY-DULLOO: And, we don't have the money to do that.

READ: Okay. So, how did you go about setting up the business then?

FANNY-DULLOO: Again, like, we asked Simon if he would be able to help us doing it. So, he was, like, "Yep. That's fine." So, he helped us setting it on – on ASIC, just the ASIC to get the ASIC registered and all that, and then I went to the bank to set it up myself and with two signatories which is myself and Tori as the director of finance for – for that. So, we were at, like, Forward Focussed, but then because it was till – it wasn't upgraded. It was already shut. But the premises was still – like, I think it was paid for until January or February or whatever. So, he was like, "We don't have anywhere to go for the moment," so we'll be – kindly accepted that we stayed in that premises because it was paid for already.

READ: Yep. Did you pay them for it?

FANNY-DULLOO: For the premises?

READ: Yeah.

FANNY-DULLOO: No. That was just a - - -

READ: No. So, the funds – so the funds for Dream Big to operate out of Jull Street had already been paid by FFG or Hive?

FANNY-DULLOO: Whoever paid the – whoever paid the – the rent for them.

READ: Yeah. So, technically then, do you agree that the – the rent of the premises in which Dream Big could operate out of – was or can be linked to Vida and Simon?

FANNY-DULLOO: Well - - -

READ: I know it's circumstantial maybe but if - - -

FANNY-DULLOO: We don't – it's just like – look, we just wanted to help ourselves and to start it.

READ: Yeah.

FANNY-DULLOO: Like, no – it didn't come into how we need to run it, what we need to do, what advice that – is nothing about – like, it wasn't even there. Like, it's just – we were there, the three of us, to actually – okay – put together, "What do we need to do?" Like, the three of us – myself, Tori and Blake – we were there.

READ: Yeah.

FANNY-DULLOO: So, Alex as well was – was here with us but he's now a support worker because we couldn't afford to have people – like – so Alex was previously with Forward Focussed as IT as well as scheduling. We just couldn't afford to have all that people working as a management team. So, we needed to – for them to [0:50:47] or to

have a job - [0:50:48] put food on the table, we were like, "Okay. We need support workers." They were support workers before. "Would you like to go for support work?"

READ: Yeah.

FANNY-DULLOO: Because we need people as a support worker.

READ: Yeah. So, what about the business telephone numbers?

FANNY-DULLOO: We don't have a telephone number.

READ: No. And, what – okay. So, the IT – you mentioned IT.

FANNY-DULLOO: Yeah.

READ: What about your IT set-up for Dream Big. How did that – how was that set up?

FANNY-DULLOO: IT?

READ: Yeah.

FANNY-DULLOO: We don't have an IT.

READ: Do you have email?

FANNY-DULLOO: We have email. Yes.

READ: Who set that up?

FANNY-DULLOO: That was Alex.

READ: Okay.

FANNY-DULLOO: We were then – who worked with us as Dream Big when Forward Focussed closed.

READ: Yeah. And when you look at your emails – because obviously you've emailed – somebody has emailed me.

FANNY-DULLOO: Hmm.

READ: It looks like a number of people could use it. It isn't just individual to one person. So, who – you know, the email address that comes out with DV – whatever at whatever – who has access to such emails?

FANNY-DULLOO: I have access to my email.

READ: Yeah.

FANNY-DULLOO: Tori has access to her own email. Blake has access to his own email. And, we do have an admin email and an accounts email.

READ: Right.

FANNY-DULLOO: That's all we have.

READ: Okay. Do Vida or Simon have any access to that?

FANNY-DULLOO: No.

READ: No.

FANNY-DULLOO: Absolutely not.

READ: Okay. So, with the premises, when Dream Big took over, so you – Dream Big had been operating in that premises since – is it since October, 31st of October?

FANNY-DULLOO: [0:52:20].

FANNY-DULLOO: Even – even if it is, I don't see a problem. They don't – they're not – they're renting a property and we are not, like – they're nothing to do with coming to the office, only thing. They're just renting a property. Yeah. And, if that's the case.

READ: So, if that's your thing, then you would have nothing hide in – if you knew they were?

FANNY-DULLOO: No.

READ: No. So, you genuinely don't know who – who owns that property? Or who's the trustee?

FANNY-DULLOO: No.

READ: But if it was – turned out to be linked to Vida or Simon, you'd see it as – wouldn't be a problem?

FANNY-DULLOO: It would only be a problem because – if it turns out to be them, and if it's – they are the landlord, it's just they are renting a property.

READ: Yeah.

FANNY-DULLOO: They have nothing to do with – with Dream Big. They are not getting, like, you know – so I won't see that a problem.

READ: But at the end of that trail, you've got participants with funding, then you've got Dream Big giving the supports and services, then you've got Dream Big then getting monies off that, and then the landlord then gets monies off Dream Big's business which is then – turns out to be linked to Vida Reid. So, there is a money trail

from Vida Reid to the participant. Without saying whether – do you – do you agree with that analogy? Or not? And, I don't know the answer to whether she's at the end of it or not but - - -

FANNY-DULLOO: No. I don't.

READ: In theory that could be the case. And, if it was the case, do you think that would be helping Dream Big to provide supports and services though? Or not?

FANNY-DULLOO: No. I don't.

READ: Because without her property you wouldn't be able – you'd get another property, would you? I don't know.

FANNY-DULLOO: Well, we can work from home. We can also work from home. We can work from – yeah. So, we can look for something else. If it turns out that, yes, they are, then, you know – it's like – it depends on what, like, [0:57:35]. Like, if we need to work from home or if we need to find something else. If – if that's me in that it can't be a landlord – like, because I – like I said – like, [0:57:46] when the bank says "directly" or "indirectly" is, like, you can't be coming and provide support or telling Dream Big what to do, what not to do, who to get, what not to get. Like, telling us how to run the business. That's how I – I take it.

READ: Yeah.

FANNY-DULLOO: Like, if – if it comes out – like, say – I say, I don't know. I'm not aware. If it comes out that, yes, that person – like, they are actually